

WHERE THERE IS A WILL

Passing on assets requires considerable thought from legal and practical standpoints, as well as usage of the right tools, to avoid disputes

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HERE THERE'S A will, there will be a dispute. And when there's no will, complications inevitably arise.

These maxims, popular among lawyers and estate planners, illustrate how difficult it is to ensure a smooth corporate succession or leave behind an inheritance for one's family.

In any case, you can't do without a will. You can counter the risks with some care and effort, say experts. The risk of a will being contested can be significantly reduced by ensuring it is professionally drafted and periodically reviewed, says Sneha Makhija, Head of Wealth Planning at Sanctum Wealth. The document should be "aligned with ownership structure, nominations and legal documentation governing the underlying assets," says Makhija.

There are hundreds of examples of inheritance disputes rocking the world of business. In July 2026, the late Ratan Tata's will faced hurdles over transfer of 3,368 Tata Sons shares he had willed to two charitable trusts. The issue is being probed by the Maharashtra charity commissioner, delaying the transfer of ₹1,684 crore worth of shares he had held in the Tata Group holding company. Ratan Tata died in 2024.



**WHAT
YOU NEED
TO KNOW**

➤ **Wills executed in several countries must be aligned to avoid inconsistencies**